

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-25-00180-CR

ANGELITA MARIE RUIZ, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 124th District Court
Gregg County, Texas
Trial Court No. 52,375-B

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

A Gregg County jury found Angelita Marie Ruiz guilty of murder, a first-degree felony, and the trial court sentenced her to thirty years' imprisonment. *See* TEX. PENAL CODE ANN. § 19.02(b)(1), (c) (Supp.).

Ruiz raises six issues on appeal. In her first five points of error, Ruiz argues that the trial court erred by (1) "permitting a general surgeon who had never performed an autopsy to testify as an expert regarding bullet trajectory," (2) "failing to instruct the jury on the issue of apparent danger," (3) "failing to instruct the jury on the lesser included offenses of manslaughter and criminally negligent homicide," (4) "failing to instruct the jury on the issue of sudden passion at the punishment phase," and (5) "excusing a juror prior to punishment-phase deliberations." In her sixth and final point of error, Ruiz argues that "the court reporter's failure to record bench conferences deprived [her] of due process and due course of law."

We find that (1) Ruiz's substantial rights were not affected by the general and trauma surgeon's testimony, (2) Ruiz was not entitled to an instruction on apparent danger, (3) Ruiz failed to preserve her complaints regarding the lesser-included offense instructions, (4) Ruiz was not entitled to an instruction on sudden passion, (5) the trial court did not err in excusing the juror, and (6) Ruiz waived her complaint regarding the unrecorded bench conferences. Accordingly, we affirm the trial court's judgment.

I. Background

In the pre-dawn hours of April 29, 2020, Austin Goodall, an officer with the Longview Police Department (LPD), responded to the scene of a shooting outside a residence that was later

determined to be the home of Ruiz. Upon arrival, Goodall found Ruiz distraught and lying over an unresponsive man who was prone in the roadway beside a still-running Dodge Durango. Other LPD officers arrived shortly thereafter. The unresponsive man was later determined to be Joshua Huffman, Ruiz's estranged common-law husband. Ruiz voluntarily told Goodall at the scene that she had shot Huffman. Later that day, during custodial questioning by Detective Jason Kelley of the LPD, Ruiz explained that she had acted in self-defense after Huffman revved the Durango's engine and turned the vehicle's wheels toward her. Kelley testified that Ruiz also described a history of past abuse by Huffman and stated that Huffman had threatened Ruiz's life the night before the shooting.

Huffman died from a single gunshot wound behind his left ear, with the bullet trajectory moving left to right and slightly forward and upward. A ballistic examination confirmed that Ruiz's gun was used to shoot Huffman.

II. Ruiz's Substantial Rights Were Not Affected by the Surgeon's Testimony

In her first point of error, Ruiz argues that the trial court improperly permitted a general surgeon to testify as an expert regarding bullet trajectory.

A. Standard of Review

We review a trial court's decision to admit or exclude evidence for abuse of discretion. *Rhomer v. State*, 569 S.W.3d 664, 669 (Tex. Crim. App. 2019) (citing *Rodgers v. State*, 205 S.W.3d 525, 527 (Tex. Crim. App. 2006)). "An expert witness may offer an opinion if he is qualified to do so by his knowledge, skill, experience, training or education and if scientific, technical or other specialized knowledge will assist the trier of fact in understanding the evidence

or determining a fact in issue." *Id.* (citing TEX. R. EVID. 702). When admitting expert testimony, the trial court must be satisfied that: "(1) [t]he witness qualifies as an expert by reason of his knowledge, skill, experience, training, or education; (2) the subject matter of the testimony is an appropriate one for expert testimony; and (3) admitting the expert testimony will actually assist the fact-finder in deciding the case." *Id.* (quoting *Vela v. State*, 209 S.W.3d 128, 131 (Tex. Crim. App. 2006)).

However, any error, other than constitutional error, "that does not affect" the appellant's "substantial rights must be disregarded." TEX. R. APP. P. 44.2(b). Such harm has not occurred "if the appellate court, after examining the record as [a] whole, has [a] fair assurance that the error did not influence the jury, or had but a slight effect." *Johnson v. State*, 967 S.W.2d 410, 417 (Tex. Crim. App. 1998) (citing TEX. R. APP. P. 44.2(b)).

B. Analysis

Assuming, without finding, that admitting the surgeon's testimony was error, it did not affect Ruiz's substantial rights in light of other evidence entered at trial. *See Maranda v. State*, 253 S.W.3d 762, 769 (Tex. App.—Amarillo 2007, pet. dism'd, untimely filed) (citing *Anderson v. State*, 717 S.W.2d 622, 628 (Tex. Crim. App. 1986)) ("Improper admission of evidence does not constitute reversible error if the same facts are proved by other, properly admitted evidence."). The autopsy report admitted into evidence described the bullet as entering the left backside of Huffman's head and traveling from left to right, upward, and back to the front. It also provided measurements that located the entry wound and the bullet's resting place within Huffman's head. A forensic pathologist also testified about the trajectory of the bullet,

explaining that the bullet entered behind Huffman's left ear and took the path described by the autopsy report. Finally, the crime scene and autopsy photographs, which represented the location and extent of the bullet wound, were also admitted at trial.

The surgeon's challenged testimony conveyed the same information, and his use of a demonstrative aid only illustrated the path described in the autopsy report without supplying a materially different conclusion about the shooting. *See Milton v. State*, 572 S.W.3d 234, 240 (Tex. Crim. App. 2019) (explaining that demonstrative aids assist the jury in understanding other evidence). Thus, the jury had independent evidence of the specific facts conveyed by the challenged testimony. *See Hawkins v. State*, No. 06-08-00087-CR, 2009 WL 30255, at *5 (Tex. App.—Texarkana Jan. 7, 2009, pet. ref'd) (mem. op., not designated for publication) (alternatively concluding that admission of an officer's wound testimony was harmless because a pathologist had provided very similar testimony).

Considering the cumulative nature of the challenged testimony in the context of the record as a whole, we have fair assurance that any error in its admission "did not influence the jury, or had but a slight effect." *Johnson*, 967 S.W.2d at 417. Accordingly, we overrule Ruiz's first point of error.

III. Jury-Charge Error

In her second, third, and fourth points of error, Ruiz raises jury-charge errors.

A. Standard of Review

"We employ a two-step process in our review of alleged jury-charge error." *Murrieta v. State*, 578 S.W.3d 552, 554 (Tex. App.—Texarkana 2019, no pet.) (citing *Abdnor v. State*, 871

S.W.2d 726, 731 (Tex. Crim. App. 1994)). "Initially, we determine whether error occurred and then evaluate whether sufficient harm resulted from the error to require reversal." *Id.* (quoting *Wilson v. State*, 391 S.W.3d 131, 138 (Tex. App.—Texarkana 2012, no pet.) (citing *Abdnor*, 871 S.W.2d at 731–32)).

"[T]he jury is the exclusive judge of the facts, but it is bound to receive the law from the court and be governed thereby." *Id.* (alteration in original) (quoting TEX. CODE CRIM. PROC. ANN. art. 36.13). "A trial court must submit a charge setting forth the 'law applicable to the case.'" *Id.* (quoting *Lee v. State*, 415 S.W.3d 915, 917 (Tex. App.—Texarkana 2013, pet. ref'd) (quoting TEX. CODE CRIM. PROC. ANN. art. 36.14)).

As we further stated in *Murrieta*,

> The purpose of the jury charge . . . is to inform the jury of the applicable law and guide them in its application. It is not the function of the charge merely to avoid misleading or confusing the jury: it is the function of the charge to lead and prevent confusion.

Id. (quoting *Lee*, 415 S.W.3d at 917 (citation omitted) (quoting *Delgado v. State*, 235 S.W.3d 244, 249 (Tex. Crim. App. 2007))).

B. Ruiz Was Not Entitled to an Apparent-Danger Instruction

In her second point of error, Ruiz contends that the trial court committed reversible error by failing to provide the jury with an instruction on the law of apparent danger. Specifically, she challenges the definition of "reasonable belief" included in the self-defense charge.

The trial court's instruction to the jury, in pertinent part, was as follows:

> [If] you further find, or have a reasonable doubt thereof, that [Ruiz] was justified in using deadly force against Joshua Huffman because she was justified in using force against Joshua Huffman in self-defense and when and to the degree the

> defendant reasonably believed the deadly force was immediately necessary, you will find [Ruiz] not guilty.
>
> . . . .
>
> ***"Reasonable Belief"*** means a belief that would be held by an ordinary and prudent man in the same circumstances as the actor.

Relying on *Jones v. State*, Ruiz argues that the trial court failed to instruct the jury that she had the right to defend against an apparent danger as "viewed from her standpoint at the time" of the offense. *See Jones v.* State, 544 S.W.2d 139, 142 (Tex. Crim. App. 1976). She maintains that this then allowed the jury to evaluate the necessity of her actions from a perspective too far removed from hers.

A defendant has a right to defend herself against apparent danger to the same extent as actual danger. *See Hamel v. State*, 916 S.W.2d 491, 493 (Tex. Crim. App. 1996); *Jones*, 544 S.W.2d at 142. That right, however, does not invariably require a separate instruction expressly addressing apparent danger. *See Valentine v. State*, 587 S.W.2d 399, 400–01 (Tex. Crim. App. [Panel Op.] 1979).

In *Jones*, the Texas Court of Criminal Appeals held that the trial court erred by refusing a properly requested apparent-danger instruction because the charge required the jury to find that the "deceased was [actually] using or attempting to use unlawful deadly force against" the defendant. *Jones*, 544 S.W.2d at 142–43. In *Valentine*, however, the court clarified that a separate apparent-danger instruction is unnecessary when the self-defense charge otherwise adequately conveys that concept. *Valentine*, 587 S.W.2d at 400–01. There, the charge authorized acquittal if the defendant "[r]easonably believed that (the deceased) was using or

attempting to use unlawful deadly force against her and that she reasonably believed" that her response was immediately necessary. *Id.* The charge also defined "reasonable belief" as "a belief that would be held by an ordinary and prudent person in the same circumstances as the defendant." *Id.* at 401. The court concluded that these instructions adequately conveyed the defendant's right to act on "a reasonable apprehension of danger, whether it be actual or apparent." *Id.*

Here, the charge expressly directed the jury to consider whether Ruiz "reasonably believed the deadly force was immediately necessary," and provided a definition that required the jury to assess that belief from the perspective of an ordinary and prudent person in Ruiz's circumstances. Accordingly, the charge properly instructed the jury on the concept of apparent danger. *See id.*

Ruiz acknowledges that the charge defined "reasonable belief" in accordance with *Valentine* but argues nonetheless that a "split" of authority renders *Valentine* less than "unequivocal." Ruiz cites *Courtney v. State*, 908 S.W.2d 48, 52–53 (Tex. App.—Houston [1st Dist.] 1995, pet. ref'd) and *Torres v. State*, 7 S.W.3d 712, 715 (Tex. App.—Houston [14th Dist.] 1999, pet. ref'd) in support of this contention. Ruiz further notes that *Valentine* is a panel opinion.

However, neither *Courtney* nor *Torres* demonstrates uncertainty surrounding *Valentine*. As the Dallas Court of Appeals explained, the charges in those cases conditioned self-defense on an actual attack or attempted attack. *Rider v. State*, No. 05-20-00220-CR, 2022 WL 1769116, at *3 (Tex. App.—Dallas June 1, 2022, no pet.) (mem. op., not designated for publication)

(discussing *Courtney*, 908 S.W.2d at 52–53; *Torres*, 7 S.W.3d at 715). Moreover, several courts have observed that *Torres* relied on *Jones* without addressing *Valentine*. *See id.*; *Garrett v. State*, No. 08-19-00024-CR, 2020 WL 4381609, at *7 (Tex. App.—El Paso July 31, 2020, pet. ref'd) (not designated for publication); *Clark v. State*, No. 04-02-00551-CR, 2004 WL 1835732, at *6 (Tex. App.—San Antonio Aug. 18, 2004, pet. ref'd) (mem. op., not designated for publication).

Nor does *Valentine*'s status as a panel opinion undermine its application here. The Texas Court of Criminal Appeals has twice reaffirmed its holding in *Valentine*. *See Walters v. State*, 247 S.W.3d 204, 212 n.37 (Tex. Crim. App. 2007); *Semaire v. State*, 612 S.W.2d 528, 530 (Tex. Crim. App. [Panel Op.] 1980). Moreover, this Court has repeatedly applied *Valentine* in rejecting challenges to apparent-danger instructions. *See Lowe v. State*, 211 S.W.3d 821, 825 (Tex. App.—Texarkana 2006, pet. ref'd); *Wilson v. State*, 179 S.W.3d 240, 252 (Tex. App.—Texarkana 2005, no pet.).

We therefore overrule Ruiz's second point of error.

C. Ruiz Failed to Preserve Her Lesser-Included Offense Complaint

Ruiz next argues that the trial court committed reversible error in refusing to submit to the jury her requested charges on the lesser-included offenses of manslaughter and criminally negligent homicide. However, the record shows that Ruiz did not preserve error.

1. Error Preservation

Requests for lesser-included instructions implicate trial strategy and therefore are not necessarily part of the law applicable to the case. *Williams v. State*, 662 S.W.3d 452, 461 (Tex.

Crim. App. 2021). As such, a trial court has no independent duty to submit an instruction on a lesser-included offense, and a defendant must preserve error to complain of such on appeal. *Id.* at 455–56. To do so, "the defendant must point to evidence in the record that raises the lesser-included offense." *Id.* at 461. Thus, merely requesting the lesser offense, without identifying the legal or factual basis for the request, ordinarily does not preserve error. *Id.* at 462–64.

An exception exists, however, where the evidence raising the lesser-included offense is "manifest," or obvious in the context to the trial court. *Id.* at 462–63. Even so, evidence found on the face of the record is not necessarily manifest. *See id.* at 463 (finding that evidence cited by the defendant on appeal was not manifest because it did not reflect any defensive theory presented at trial).

Prior to the formal-charge hearing, Ruiz submitted a proposed jury charge with the lesser-included offenses of manslaughter and criminally negligent homicide. However, she did not point out to the trial court what evidence raised it, either in the informal-charge conference at the close of evidence for the State's case or during the formal-charge conference. Thus, Ruiz preserved her complaint only if the grounds for it would have been obvious to the trial court.

However, as in *Williams*, even if the record contained some evidence relevant to manslaughter or criminally negligent homicide, such evidence was not manifest to the trial court. Rather, Ruiz tried the case on a theory of self-defense, repeatedly testifying that she intentionally shot Huffman, and her closing argument focused entirely on evidence supporting that theory. Against that backdrop, any evidentiary basis for manslaughter or criminally negligent homicide was not manifest to the trial court. *See Williams*, 662 S.W.3d at 464; *Scott v. State*, No. 05-25-

00601-CR, 2026 WL 2427752, at *6 (Tex. App.—Dallas Aug. 18, 2026, no pet.) (mem op., not designated for publication) (concluding that evidence supporting manslaughter was not manifest where appellant "did not present a defensive theory of manslaughter during trial" but instead pursued one "on identity").

We therefore overrule Ruiz's third point of error.

D. Ruiz Was Not Entitled to a Sudden-Passion Charge

In her fourth point of error, Ruiz argues that the trial court erred by not including a sudden-passion charge in the punishment phase.

"Sudden passion" is "passion directly caused by and arising out of provocation by the individual killed," which arises at the time of murder. TEX. PENAL CODE ANN. § 19.02(a)(2) (Supp.). "At the punishment stage of a trial, the defendant may raise the issue as to whether [s]he caused the death under the immediate influence of sudden passion arising from an adequate cause." *Id.* § 19.02(d) (Supp.). "If the defendant proves the issue in the affirmative by a preponderance of the evidence, the offense is a felony of the second degree." *Id.* "'Adequate cause' means cause that would commonly produce a degree of anger, rage, resentment, or terror in a person of ordinary temper, sufficient to render the mind incapable of cool reflection." *Id.* § 19.02(a)(1) (Supp.).

> To be entitled to a jury instruction on the issue of sudden passion during the punishment phase, the record must at least minimally support the following inferences: (1) that [Ruiz] acted under the immediate influence of a passion such as terror, anger, rage, or resentment; (2) that [her] sudden passion was induced by some provocation by the deceased or another acting with [her], which provocation would commonly produce such a passion in an individual of ordinary temper; (3) that [s]he committed the murder prior to regaining [her]

> capacity for cool reflection; and (4) that a causal connection existed "between the provocation, the passion, and the homicide."

Walker v. State, 557 S.W.3d 678, 688 (Tex. App.—Texarkana 2018, pet. ref'd) (quoting *McKinney v. State*, 179 S.W.3d 565, 569 (Tex. Crim. App. 2005)). If a defendant presents evidence of sudden passion, she is entitled to an instruction on this mitigating circumstance even if the evidence raising such an issue is contradicted, weak, or unbelievable. *Trevino v. State*, 100 S.W.3d 232, 238 (Tex. Crim. App. 2003) (per curiam). The question "is whether there was any evidence from which a rational jury could infer sudden passion." *Moore v. State*, 969 S.W.2d 4, 11 (Tex. Crim. App. 1998).

As the provocations for her sudden passion, Ruiz cites past abuse at the hands of Huffman and immediate fear for her life when he revved the vehicle's engine at her. However, passion that is "solely the result of former provocation" does not suffice. *Hobson v. State*, 644 S.W.2d 473, 478 (Tex. Crim. App. 1983) (quoting TEX. PENAL CODE ANN. § 19.04(b)). Moreover, "[e]vidence of fear alone, or self-defense, is not sufficient to raise sudden passion." *Walker*, 557 S.W.3d at 688.

The facts in this case are similar to those in *Walker*. In *Walker*, Walker shot and killed her husband after he entered their home, claiming she had done so out of self-defense. *Id.* at 681. Moments before the shooting, the couple had gotten into a heated argument in their neighbor's yard, which resulted in Walker storming back to her and her husband's home. *Id.* at 680. Once inside, Walker sent over forty text messages to her husband within two hours, many of which were laced with profanity. *Id.* Walker explained that she sent the messages to draw her husband to the house. *Id.* at 682. When the husband asked to be let into the home, Walker responded,

"[expletive] off u come in and I will put a bullet inn [sic] you." *Id.* at 681 (alterations in original). When the husband made no reply, Walker responded again that she was "setting [expletive] on fire." *Id.* (alteration in original). At that point, the husband attempted to enter the home, which led to Walker retrieving a gun from her bedroom and shooting him. *Id.* During the punishment phase, Walker testified of past abuse from her husband. *Id.* She further testified that when she shot him, she was afraid of what he was going to do to her. *Id.* at 682. On appeal, Walker argued that the trial court erred in not including an instruction on sudden passion. *Id.* at 687. This Court, however, found that Walker's actions were deliberate and reflective, noting specifically the text messages sent and the fact that Walker had armed herself in expectation of her husband entering the house. *Id.* at 689.

Similarly, in this case, on the night of the shooting, Ruiz sent several inflammatory and profanity-laced messages to Huffman, demonstrating intent to harm both him and his property.[1] Moreover, Ruiz testified that after sending these messages, she called Huffman and asked him to come to her residence. Finally, Ruiz testified that she armed herself with a gun before Huffman arrived, indicating that she anticipated the event at issue. As in *Walker*, we find that Ruiz's conduct demonstrated a deliberate response to a perceived threat.

Accordingly, we find that the trial court did not err when it failed to include a jury instruction on the issue of sudden passion. We overrule Ruiz's fourth point of error.

[1]After telling Huffman that she was about to use a baseball bat to damage his parked car that was in her yard, Ruiz texted him stating, "I'll be waiting for you with my [expletive] gun pointed straight to your [expletive] dick."

IV. The Trial Court Did Not Err in Excusing a Juror Prior to Punishment-Phase Deliberations

In her fifth point of error, Ruiz challenges the trial court's excusal of a juror prior to punishment-phase deliberations. Specifically, Ruiz challenges the finding that the juror was disabled due to her responsibilities as the primary caregiver of her father.

A. Standard of Review

The Texas Constitution requires a jury in a felony-criminal trial to be composed of twelve members. TEX. CONST. art. V, § 13. "The trial court has discretion to determine whether a juror has become disabled and to seat an alternate juror." *Scales v. State*, 380 S.W.3d 780, 783 (Tex. Crim. App. 2012) (citing TEX. CODE CRIM. PROC. ANN. art. 36.29). In deciding to remove a juror, "the trial court must make a finding, sufficiently supported by the record, that the juror was disqualified or unable to perform the duties of a juror." *Id.* at 784 (citing TEX. CODE CRIM. PROC. ANN. art. 33.011). We may not "substitute [our] own judgment for that of the trial court." *Id.* Instead, we are "to assess whether, after viewing the evidence in the light most favorable to the trial court's ruling, the ruling was arbitrary or unreasonable." *Id.* "The ruling must be upheld if it is within the zone of reasonable disagreement." *Id.* Absent an abuse of discretion, no reversible error will be found. *Id*.

B. Analysis

Ruiz first argues that the juror was not "disabled' under Article 36.29 of the Texas Code of Criminal Procedure. *See* TEX. CODE CRIM. PROC. ANN. art. 36.29 (Supp.). However, several courts, including this Court, have held that a juror may be disabled for purposes of Article 36.29 when a family emergency arising from the juror's caregiving responsibilities prevents the juror

from fully and fairly performing the duties of a juror. *See Edwards v. State*, 981 S.W.2d 359, 367 (Tex. App.—Texarkana 1998, no pet.); *Brown v. State*, No. 10-07-00279-CR, 2010 WL 138331, at *5–6 (Tex. App.—Waco Jan. 13, 2010, pet. dism'd, untimely filed) (mem. op., not designated for publication) (upholding juror's dismissal when juror needed to care for spouse). Ruiz attempts to distinguish these cases on the grounds that they involved jurors responsible for the care of a child or spouse, rather than a parent. However, neither Article 36.29 nor the cases construing it limit a juror's disability to caregiving responsibilities owed to a particular family member. *See* TEX. CODE CRIM. PROC. ANN. art. 36.29(c). Rather, the relevant inquiry is whether any condition or circumstance "inhibits a juror from fully and fairly performing the functions of a juror." *Reyes v. State*, 30 S.W.3d 409, 411 (Tex. Crim. App. 2000) (quoting *Griffin v. State*, 486 S.W.2d 948, 951 (Tex. Crim. App. 1972)).

Next, Ruiz states that the juror did not speak directly with the trial judge but instead communicated with the bailiff about her father's condition. However, a trial court is not required to personally question a juror before finding the juror disabled. *See Scales*, 380 S.W.3d at 784 n.18. Rather, the trial court's finding need only be sufficiently supported by the record. *Id*. at 784. Accordingly, courts have upheld disability findings based on information relayed to the trial court by court personnel rather than by the juror personally. *See Johnson v. State*, 718 S.W.3d 563, 567-68 (Tex. App.— Houston [14th Dist.] 2025, pet. ref'd) (upholding dismissal of a juror where trial court relied on information from the bailiff in finding the juror disabled); *Brown*, 2010 WL 138331, at *5–6 (upholding the trial court's dismissal of a juror where the trial court relied on the court coordinator's testimony about the juror's condition).

We therefore overrule Ruiz's fifth point of error.

V. Ruiz Failed to Preserve Her Complaint About Unrecorded-Bench Conferences

In her sixth and final point of error, Ruiz argues that the court reporter's failure to record bench conferences deprived her of meaningful appellate review and violated her rights to due process and due course of law.

A defendant must object to the court reporter's failure to record a bench conference to preserve the complaint for appellate review. *See Valle v. State*, 109 S.W.3d 500, 508–09 (Tex. Crim. App. 2003); *Morris v. State*, No. 06-09-00147-CR, 2010 WL 1644739, at *4 (Tex. App.—Texarkana Apr. 23, 2010, no pet.) (mem. op., not designated for publication). The record does not reflect that Ruiz objected to the court reporter's failure to record the bench conferences, nor does Ruiz allege that she made such an objection.

Instead, Ruiz urges this Court to reconsider *Valle* in light of the constitutional interests implicated. However, as an intermediate court, we must follow the binding precedent of the Texas Court of Criminal Appeals. *See* TEX. CONST. art. V, § 5(a); *Peek v. State*, No. 06-08-00069-CR, 2008 WL 5090344, at *2 (Tex. App.—Texarkana Dec. 4, 2008, no pet.) (mem. op., not designated for publication) (declining to "make an exception to well-established Texas precedent" requiring an objection to a court reporter's failure to record trial proceedings to preserve error).

Because Ruiz failed to preserve her complaint for appeal, we overrule her sixth point of error.

VI. Conclusion

We affirm the trial court's judgment.

Scott E. Stevens
Chief Justice

Date Submitted: August 28, 2026
Date Decided: October 20, 2026

Do Not Publish